PART I
SUBMISSION REQUIREMENTS





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Introduction

The Environmental Planning and Assessment Regulation 2021 s24 sets out the documents required to accompany a development application. Additional guidelines for Council's requirements for certain documentation is included in this Part

Each part of the DCP references reports and other documentation that may be required to be submitted as part of a development application. This part provides additional detail on the elements to be included in these reports, how they should be prepared, and resources to aid this preparation.

I1 Submission requirements for Part B - Context, Site Analysis and Design

The primary submission requirement within this part is a Site Analysis Plan.

Note: The level of detail required for a context analysis is relative to the size, scope and impact of the development proposal.

I1.1 Submission requirements for Part B1.1 Site Analysis

I1.1.1 Site Analysis Plan

The site analysis plan is to identify the key opportunities and constraints of the site, taking into account the planning controls within LEP 2015 and this DCP.

It should generally take the form of a scaled plan drawing which includes but not be limited to the following list of the requirements.

The following list of requirements represents preliminary site analysis requirements, derived from readily available or observed information. In certain circumstances specialist reports (to identify additional details or provide further investigations) may be required, in response to existing or potential site conditions. Identification of these elements should include areas contiguous with or surrounding the immediate site, if known.

For minor applications where the land has minimal constraints or the proposal is for minimal external changes, a separate drawing or plan may not be necessary, and the site analysis information can be incorporated onto the site plan. It may also be necessary to incorporate relevant written discussion into the Statement of Environmental Effects.

Site Characteristics

(a) Property details including site boundaries, dimensions and area showing north point and scale;

(b) Site contours and/or spot contours at an appropriate interval (usually 1m intervals) of the subject site and surrounding allotments as necessary to depict slope conditions;

(c) Sun movements across the site in summer and winter;

(d) Prevailing wind directions and wind speeds;

(e) Encumbrances such as easements or rights of way;

(f) Orientation, aspect, views and microclimate;

(g) Existing noise sources, light spillage and overshadowing;

(h) Existing development including buildings, fences, driveways, parking areas, signage, retaining walls and hard surface areas;

(i) The location and identity of existing trees, vegetation and natural features;

(j) Location of above and below ground services and infrastructure including stormwater drainage, power and water supply, sewer pipes, kerb crossings;

Note: Council's mapping contains some information on service lines and infrastructure. The 'Dial before you Dig' service is also designed to provide information on underground servicing and can be accessed at www.byda.com.au;

(k) Access and street features including roads, poles, footpaths, driveways;

(l) Existing heritage or archaeological features on or adjoining the site;

(m) Existing land and development adjoining the site.

Environmental mapping information

Note: Council's website has an interactive mapping tool which is capable of providing detailed mapping information on many different site aspects, which can be used in the preparation of a site analysis plan. Refer to www.bmcc.nsw.gov.au/property-search

(n) The zoning of the land.

(o) Mapped environmental features

i. Environmental features identified on LEP 2015 maps, including zone C2 Environmental Conservation, significant vegetation communities, fauna biocorridors, Protected Areas (Slope Constraint, Landslide Risk, Vegetation Constraint, Ecological Buffer, Watercourses, Riparian Land and Escarpment);

ii. Land identified at or below the flood planning level;

iii. The level of the probable maximum flood;

iv. Land adjoining Blue Mountains National Park; and

v. Land adjoining Council or Crown reserve land.

(p) Known or observed features

i. Existing trees (exotic or native), trees with hollows, areas of native vegetation, rock outcrops, rock ledges, cliffs and caves, springs, groundwater seepage areas, gullys, minor flow paths, watercourses, wetlands, swamps and visually prominent scenic locations.

ii. Existing structures, landscaped areas, dams, drainage easements and infrastructure.

(q) Whether the land is mapped as bushfire prone.

If so, it is useful to map the location, extent and vegetation group of any bushland on or within 100 metres of the site; the slope and aspect of the site and of any bushfire prone land within 100 metres. These are some of the environmental features used by the Rural Fire Service to assess the bushfire risk of a property.

(r) Whether the land or land in the vicinity is identified as heritage-listed (either a heritage item, heritage conservation area, archaeological item, or Aboriginal item or place);

(s) Information on any other constraints including:

i. Land inundation that may impact on the design;

ii. Any known contamination.

Note: The Sydney Drinking Water Catchment is covered by the State Environmental Planning Policy (Biodiversity and Conservation) 2021. Refer to the interactive map of the catchment at the WaterNSW website at www.waternsw.com.au/education/learning-about-water/catchments. Applications should identify whether their property is located within the Sydney Water Catchment.

I1.2 Submission requirements for Part B1.2 Context Analysis

A context analysis is to include identification of key characteristics and elements of the surrounding urban form to which the design should respond. As a guide this is to include (but not be limited to):

(a) photographs of adjoining buildings and streetscapes;

(b) setbacks, height (storey/metres), use and location of buildings, structures, and any other significant features on adjoining land;

(c) any potential noise sources, private open space areas, balconies or windows which may overlook the site;

(d) any views to and from the land;

(e) adjoining streets, footpaths, kerbs, reserves and any other significant local features;

(f) location of site in relation to shops, community facilities and transport;

(g) form and character of adjacent and opposite buildings in the streetscape, including both sides of the street that the development fronts;

(h) location and important characteristics of adjacent public communal and private open space(s);

(i) orientation and overshadowing of the site and adjoining properties by neighbouring structures and trees.

I1.3 Submission requirements for Part B2 Building Envelope

There are no specific submission requirements for this section, however the core building envelope controls would need to be addressed as part of any Statement of Environmental Effects submitted with the development application.

I1.4 Submission requirements for Part B3 Design

I1.4.1 Site and Context Analysis

Proposals for significant infill development are to provide a detailed site and context analysis. This is to include a statement outlining the proposed measures to minimise the adverse impacts of the infill development on neighbouring lands including the public domain; and the philosophy of how the design elements relate to the proposal's context in terms of built form, materials and character. Applicants are to identify elements that contribute to the quality of the place, and demonstrate how these elements are reinterpreted in the new development

Council's website has an interactive mapping tool which is capable of providing detailed mapping information which can be used in the preparation of a context analysis plan. Instructions regarding the use of the interactive mapping is also available on Council's website.

I2 Submission requirements for Part C - Environmental Management

Part C – Environmental Management covers areas such as biodiversity, landscaping and bush fire. These considerations are interconnected and the submission requirements may be the same or have some content which overlaps.

As such, the following list of submission covers all sections within Part C of the DCP, with the exception of C6 Water Management.

The level of environmental and landscape information to be submitted with a development application will depend on a number of factors, such as the type and scale of the development, the location, extent and nature of the proposed site works, and whether environmental features will be impacted.

I2.1 Submission requirements for Part C1 Biodiversity and Natural Resources – C5 Tree Vegetation and Preservation

One or more of the following types of surveys, reports and strategy documents may need to accompany a development application:

I.2.1.1 Site Analysis Plan

Details on how to prepare a site analysis plan are contained at B1. Council's website has an interactive mapping tool which is capable of providing detailed mapping information which can be used in the preparation of a site analysis plan. Instructions regarding the use of the interactive mapping is also available on Council's website.

I.2.1.2 Flora and Fauna Assessment

It is important that a Flora and Fauna Assessment submitted to Council considers the environmental impact of the proposed development (including ancillary works such as asset protection zones, effluent disposal, stormwater management and landscaping works etc.) by addressing the relevant clauses from LEP 2015 with respect to flora and fauna protection and management. In addition the assessment must address the requirements of the relevant state and federal legislation.

Council's guide on how to prepare a Flora and Fauna Assessment can be found at: www.bmcc.nsw.gov.au/documents/guide-flora-and-fauna-assessment

I.2.1.3 Biodiversity Development Assessment Report (BDAR)

The BDAR is to be prepared by an ecologist who is an accredited assessor listed on the Accredited Assessor Public Register and with local ecological experience. The ecologist is to apply the Biodiversity Assessment Method (BAM) and is to clearly document how the development proposal is sited and designed to avoid impacts to biodiversity. It must be demonstrated that every option for avoiding

impacts to biodiversity has been explored. Credits must only be calculated to offset the residual impacts of the development after all efforts to avoid and minimise impacts have been made.

Local environmental provisions (as detailed in Council's Flora and Fauna Assessment Guideline on Council's website) and relevant SEPPs are also to be addressed within the BDAR.

Note: Seeking preliminary advice from Council prior to the preparation of a BDAR is strongly recommended.

I.2.1.4 Vegetation Survey and Species Inventory

In some circumstances depending on the scale and impact of a proposed development, the condition of the site and the history of environmental assessment, a Vegetation Survey and Species Inventory may be required to be prepared instead of a Flora and Fauna Assessment.

This is to be conducted by an environmental consultant, or other practitioner, with relevant qualifications and experience in botanical identification.

A flora inventory or list of all flora species occurring within the footprint of the proposed development including any asset protection zone is to be prepared. The inventory is to include the following information: scientific/common name, age class/size, habitat value, rare/threatened status, /native).

An accompanying plan (such as a Site Analysis Plan) is to be provided to show proposed development including any asset protection zones and the location of any rare or threatened flora species observed; and the location, extent and description of observed native vegetation communities present within the site. The plan is to identify the presence of any significant vegetation communities (listed under LEP 2015 Schedule 6) or any Endangered Ecological Communities (listed under the NSW Biodiversity Conservation Act 2016 or Commonwealth Environment Protection and Biodiversity Conservation Act, 1999).

Depending on the outcomes of the Vegetation Survey and Inventory, further information to complete a full Flora and Fauna Assessment may be required.

I.2.1.5 Vegetation Management Plan (VMP)

A Vegetation Management Plan (VMP) is a map based report intended to assist the property owner or occupier in managing their development site (planned or existing) in order to ensure that existing bushland elements on their land are protected from excessive human induced disturbance. A VMP is generally a requirement on sites where there are number of environmental constraints or high level ecological values. It should contain a concise written report (Part 1) and a map or plan drawing (Part 2) of the study area.

Council's The Vegetation Management Plan Guide (VMP Guide) will assist in the preparation of a detailed vegetation management plan, and can be accessed at:

www.bmcc.nsw.gov.au/documents/guide-vegetation-management-plan

I.2.1.6 Weed Management Strategy (WMS)

A weed management strategy is to be comprised of two parts; an annotated aerial photograph or site plan and an accompanying document, predominantly in tabular format, specifying the weed control strategy and timing. Complex weed management strategies will need to be prepared by a suitably qualified and experienced weed control or bushland restoration practitioner.

A weed management strategy is to contain the following information:

(a) A site plan/annotated aerial photograph, with vegetation management zones identified, and the location of existing weeds clearly identified (See Vegetation Management Plan (VMP) guidelines for further explanation);

(b) A statement which identifies the factors or processes promoting the weeds on the site;

(c) The actions which will be taken to remediate or mitigate these factors and processes so as to reduce opportunities for further weed growth;

(d) Methods to be used to stabilise all areas where weeds are to be removed so as to maintain soil stability until such time as the site is fully regenerated or revegetated with desirable species (if relevant), or otherwise permanently stabilised;

(e) A table which identifies the following:

i. Scientific and common names of all priority and dominant environmental weeds present on the site, and their weed class (priority weeds only);

ii. The most appropriate and applicable control technique(s) for each weed or class of weed;

iii. Appropriately staged timing for implementation of the weed control strategy;

iv. An indication of the level of weed control to be achieved on all parts of the site, within the following time frames:

- within three months of the date of development approval
- within six months from the date of development approval
- prior to the issue of the occupation certificate
- within three years of occupation

I.2.1.7 Tree Survey Report and Arboricultural Impact Assessment

In circumstances where trees are to be removed and/or impacted by a proposed development, a Tree Survey Report, providing detailed information on the trees present, is to be prepared by a qualified Consulting Arborist and submitted in support of the development application. Full detail of trees to be removed as well as trees proposed for retention should be given.

Where trees are identified during the Tree Survey as suitable for retention, an Arboricultural Impact Assessment Report is to inform the design to avoid tree impacts and explain design and construction methods proposed to protect trees. It will recommend measures necessary to protect the trees throughout all demolition and construction stages.

The Arborist's Reports on existing trees taller than 4m are to include the following information:

(a) Allocated survey number (to correlate with survey plan and identify location within site);

(b) Species name & common name;

(c) Trees to be retained;

(d) Trees to be removed due to the proposed development;

(e) Trees to be removed due to death or disease;

(f) Estimated Height (to aid on-site identification and assessment of significance);

(g) DBH (Diameter at Breast Height – to indicate tree maturity and allow estimation of lateral root spread);

(h) Canopy spread (to allow assessment of any requirement to prune or likely impact of overshadowing);

(i) Health and/or Condition status (which may include SULE rating or comparative suitability for retention);

(j) Recommended TPZ (Tree Protection Zone) for trees, which are to be retained, if applicable. This is the minimum distance from the centre of any tree at which development should commence;

All trees on adjoining properties that are within 3 metres of the boundary of the proposed development shall be incorporated into the Tree Survey report. When the proposed development will have a significant impact upon the future health and suitability for retention of other large or significant trees located on adjacent properties, but which are further away than three metres, the arborist is to note their existence, and provide appropriate recommendations for their management.

All assessment and recommendations should be consistent with the Australian Standard AS 4970—2009, The Protection of Trees on Development Sites.

I.2.1.8 Tree Removal and Retention Plan (Basic plan)

In some circumstances for small scale development applications, a Tree Removal and Retention Plan may be required as an alternative to an Arboricultural Survey Report

The Tree Removal and Retention Plan is to be prepared by an appropriate person, and is to show the approximate location of all existing trees within the proposed development footprint, including any asset protection zone or landscaped area, and indicate whether they are proposed for removal or retention.

The trees are to be identified by scientific and/or common name, and each tree provided with a unique identifying number on both the plan drawing and on site (using suitable markers).

I.2.1.9 Landscape Plan

Almost all development proposals within the Blue Mountains are required to provide details of site landscaping. Generally, only minor additions and alterations (where development involves an area <50m2) and proposals which do not include site works, are exempt from this requirement.

A Landscape plan is to be prepared by a suitably qualified professional such as an accredited landscape architect, landscape designer or horticulturist with relevant design experience.

The landscape plan must be consistent with the site analysis, architectural,

stormwater and other relevant plans submitted with the application and detail:

(a) Survey location of existing trees and other vegetation to be retained or removed. All trees are to be located, identified and numbered, and shall coincide with the arborist's report. Protection measures for retained vegetation shall be included in the arborist's report;

(b) Survey location of existing buildings, other structures, paths, fences, retaining walls;

(c) Significant natural features including drainage lines and overland flow paths, geological features, environmentally sensitive land, and habitat features;

(d) All aspects of proposed development such as proposed buildings, walls, fences, paths, driveways and parking areas, impervious areas and stormwater infrastructure;

(e) Proposed land modification including cut/fill, retaining walls, embankments, temporary access ways, modified flow paths or drainage lines;

(f) Water Sensitive Urban Design features including details of vegetative components;

(g) Location of tree protection measures for retained trees and exclusion zone fencing required to protect areas of existing vegetation or significant site features;

(h) A planting plan showing the location of trees and large shrubs and areas to be planted with low shrubs and ground covers;

(i) An indicative planting schedule containing common and botanical names of trees, screening shrubs and groundcover species;

(j) Retaining wall specifications including dimensions, finished height, material to be used;

(k) Calculation of site cover, impervious area and landscaped area;

(l) Any other landscaping requirements as outlined in the relevant section in this DCP.

I.2.1.10 Landscape Plan - Additional Detail

For complex or large developments, additional landscape detail is required to be included on the Landscape Plan to demonstrate that a high quality landscape outcome will be achieved.

The following additional information is to be provided:

(a) The precise location and number of proposed plantings;

(b) Pot size at planting and mature heights and width of all plants;

(c) The manner in which the landscape area will be prepared, installed and maintained;

(d) Location of deep soil zones to demonstrate the soil volumes can accommodate the proposed planting;

(e) Location of utility areas and screening details (e.g. garbage receptacle area, storage of recyclable waste, clothes drying area, letter boxes, play areas, private and common open space);

(f) location and details of lighting and other outdoor fixtures (e.g. signs, furniture);

(g) Specifications for maintenance to successfully establish plants (watering, weeding, fertilising, etc) and for ongoing maintenance (pruning, hedging, replacement planting etc) including timeframes;

(h) Soil condition (areas of compaction, cut, fill, erosion or contamination), depth of topsoil and subsoil, pH.

I.2.1.11 Bushfire Threat Assessment

(a) For any development (other than subdivision or a special fire protection purpose), in accordance with section 4.14 of the Environmental Planning and Assessment Act 1979.

(b) For subdivision and Special Fire Protection Purposes in accordance with section 100B of the Rural Fires Act 1997.

A Bush Fire Threat Assessment is required to be submitted as part of a development application. For all development, other than residential class 1 and 10 development, the Assessment is to be prepared by a suitably qualified consultant.

Note 1: The RFS recognises consultants within certain accreditation schemes. These can be found at: www.rfs.nsw.gov.au/__data/assets/pdf_file/0012/33105/Community-Resilience-Fact-Sheet-Requirements-for-Suitably-Qualified-Consultants.pdf

I2.2 Submission requirements for Part C6 Water Management

I.2.2.1 Small Scale Development: Concept Stormwater Management Plan

The Concept Stormwater Management Plan (SMP) is a drawing that depicts the process of capture, conveyance, treatment and disposal of stormwater runoff from the site. The plan is to provide enough detail for Council to determine that the proposal will function in accordance with the development controls of this Section of the DCP and in accordance with accepted engineering practices.

The Concept SMP is to show:

(a) the entire site, with scale bar, scale ratio and north arrow; and

(b) proposed development, extent of works, existing and proposed impervious areas and areas of disturbance; and

(c) existing land use and vegetation cover / condition; and

(d) overland flow paths, drainage lines, sub-catchment areas; and

(e) constraint areas including planning, ecological, archaeological, geotechnical, flood prone land etc; and

(f) water conservation, re-use and detention measures; and

(g) location and design of stormwater quality and quantity control measures; and

(h) drainage layouts, pit and pipe design/sizing, discharge points; and

(i) any required sub-soil drainage; and

(j) any legal easements.

I.2.2.2 Small Scale Development: Small Scale Stormwater Quality Model

This submission requirement only applies to development required to provide stormwater quality treatment and proposing to achieve this using a stormwater treatment train determined by the WaterNSW Small Scale Stormwater Quality Model (s3qm).

A certificate from an assessment completed using s3qm must be submitted with these proposals.

The s3qm model is available on the WaterNSW website at www.s3qm.com.au

The following parameters are to be used in the s3qm model:

- climate region = Refer to the climate zones identified by the WaterNSW at www.s3qm.com.au/documentation. For sites located outside of the identified climate zones, utilise zone 25; and
- soil type = Select sandy loam, sandy clay, sand or clay, as occurs on the site; and
- assessment type = NorBE; and
- assessment method = Design.

I.2.2.3 Large Scale Development: Concept Stormwater Management Plan

The Concept Stormwater Management Plan (SMP) is a drawing that depicts the process of capture, conveyance, treatment and disposal of stormwater runoff from the site. The plan must provide enough detail for Council to determine that the proposal will function in accordance with the development controls of this Section of the DCP, and in accordance with accepted engineering practices.

The Concept SMP is to show:

(a) the entire site, with scale bar, scale ratio and north arrow; and

(b) the proposed development, extent of works, existing and proposed impervious areas and areas of disturbance; and

(c) the existing land use and vegetation cover / condition; and

(d) any overland flow paths, drainage lines, sub-catchment areas; and

(e) any constraint areas – planning, ecological, archaeological, geotechnical, flood prone land etc; and

(f) the water conservation, re-use and detention measures; and

(g) the location and design of stormwater quality and quantity control measures; and

(h) the drainage layouts, pit and pipe design/sizing, discharge points; and

(i) any required sub-soil drainage; and

(j) any legal easements.

I.2.2.4 Large Scale Development: WSUD strategy

For all large developments, a WSUD strategy comprising a written report must accompany the Concept Stormwater Management Plan drawing.

The WSUD strategy is to address the whole water cycle (potable, stormwater, waste water) in a sustainable and integrated way to provide for water conservation and re-use, on-site detention, retention, water quality treatment, infiltration and safe disposal to the receiving natural environment. The WSUD strategy is to demonstrate the proposed development will meet the objectives and controls of this Part of the DCP.

A detailed WSUD strategy is to cover the following items:

(a) Background information – summarise relevant background information, relevant studies (flood, geotechnical, contamination, environmental) and Council mapping data; and

(b) Site context – identify all sub-catchment areas, drainage lines, flow paths and receiving environments, the ecological values of the site and its receiving waters; and

(c) Proposed development – provide an accurate description of the proposed development. Illustrate the proposed development on a detailed site plan showing site boundaries, contours, proposed infrastructure, staging, access, location and extent of existing and proposed land uses/existing and proposed impervious areas/vegetation cover and asset protection zones; and

(d) WSUD objectives and targets – describe the WSUD objectives and identify stormwater treatment performance targets that apply to the proposal, consider Council requirements and WaterNSW requirements in Sydney's Drinking Water Catchments; and

(e) Integrated Water Cycle Management – address the whole water cycle (potable, stormwater, wastewater) in a sustainable and integrated way; and

(f) Water conservation maximised – identify all opportunities to reduce consumption and re-use water, demonstrate how potable water will be conserved through the use of roof water, harvested stormwater or grey water; and

(g) Constraints and opportunities – identify the key environmental and site constraints and opportunities for water management on the site including flooding, soil/geological and surface/groundwater conditions, environmentally sensitive features that require protection. The strategy is to be consistent with the findings of any related geotechnical investigation, flood studies and/or environmental assessments; and

(h) Hydrologic and ecological impacts minimised - Outline all necessary ameliorative measures taken to avoid, minimise and mitigate the impacts; and

(i) Stormwater management – demonstrate how the quality and quantity targets will be met with a best practice stormwater treatment train that provides appropriate devices in the correct sequence. Identify the location, size and configuration of stormwater treatment measures and drainage layout proposed for the development; and

(j) Water quality modelling - WSUD performance analysed and measured against targets, include water quality and flow modelling results, sub-catchment plan, inputs and assumptions of the model. Provide a statement as to whether the development has a neutral or beneficial effect (NorBE) on water quality in accordance with the WaterNSW and Council's water quality requirements; and

(k) Integration with urban and landscape design – Outline how the WSUD elements will integrate with the built and landscaped urban design. Show how landscape, visual and social amenity will be enhanced; and

(l) Operation and maintenance details – Identify basic monitoring, maintenance and access requirements to ensure the effective ongoing structural integrity, operation, maintenance and required performance of the stormwater management system for the life of the development.

I.2.2.5 Large Scale Development: Pre and Post development water quality analysis

All large scale development is required to provide a MUSIC Model or equivalent detailed water quality analysis with an industry standard water quality model is required to demonstrate that the stormwater treatment performance outcomes will be achieved. The applicant is to ensure:

(a) the MUSIC model analyses the WSUD strategy being proposed and be consistent with the accompanying Concept Stormwater Management Plan; and

(b) a digital file containing the water quality model is to submitted with the development application; and

(c) the application includes a catchment plan for the pre and post development scenarios; and

(d) all pre and post development modelling parameters, inputs, assumptions, calculations and output files are to be included in the accompanying Stormwater Management Plan; and

(e) the water quality model is to comply with the WaterNSW document "Using MUSIC in Sydney's Drinking Water Catchment".

I.2.2.6 Geotechnical Investigation

A geotechnical investigation and report may be required to be undertaken by a qualified geotechnical professional with demonstrated experience that specifically addresses the current site conditions and suitability of the site to accommodate water sensitive urban design (WSUD) devices to provide stormwater water quality control, infiltration and treatment systems.

The investigation is to confirm the following:

(a) the geology and soil character/depth; and

(b) the soil permeability/hydraulic conductivities/infiltration rates; and

(c) the presence and depth of any groundwater in the vicinity of required WSUD devices; and

(d) the presence and depth of any bedrock in the vicinity of required WSUD devices; and

(e) any apparent soil and groundwater contamination issues

The results of the investigation are to inform the detailed stormwater management design and confirm the nature of WSUD devices considered suitable and effective for the site.

I.2.2.7 Onsite stormwater detention

A concept stormwater management plan showing the location of the proposed onsite stormwater detention system. The plan is to include levels to demonstrate that the detention system is able to drain stormwater to the proposed discharge point.

Pre-development and post-development calculations to size the onsite stormwater detention tank.

I.2.2.8 Groundwater Assessment (or Geotechnical Investigation)

A Groundwater Assessment (or Geotechnical Investigation) that meets Councils requirements is to be conducted, prepared and submitted as part of any Development Application for all development proposals, other than single dwellings, incorporating an excavation greater than 1m, and for all development where ground water is evident, to establish whether the development may impact upon groundwater.

This investigation is to be undertaken by a suitably qualified geotechnical or hydrogeological engineer and submitted with the development application.

The Groundwater Assessment (or Geotechnical Investigation) must provide information on:

(a) the local hydrology including depth to water table and an assessment of the recharge characteristics; and

(b) the presence of contaminated soil, surface water or groundwater including details of the contamination; and

(c) the presence of any conditions that require specific management measures; and

(d) an assessment of the potential for interaction with, or potential for impacts on groundwater; and

(e) the likelihood of groundwater contamination resulting from the development; and

(f) any adverse impacts the development may have on groundwater dependant ecosystems; and

(g) the cumulative impact the development may have on groundwater resources and its usage.

I.2.2.9 Groundwater Management Plan

A Groundwater Management Plan is required to be prepared if the Groundwater Assessment (or Geotechnical Investigation) determines that there is potential for interaction with, or potential for impacts on groundwater.

The Groundwater Management Plan is to comprise a written document that must be prepared by a practitioner with relevant tertiary qualifications, technical knowledge and a minimum of five (5) years demonstrated experience in the geotechnical or hydrogeological field and be prepared in accordance with the Sydney Coast Councils Group Groundwater Management Handbook 2006, subsequent updates or superseding documents.

The Groundwater Management Plan is to include and identify:

(a) a summary of the findings of the Groundwater Assessment (or Geotechnical Investigation); and

(b) more detailed information on the local hydrogeology where relevant, such as groundwater flow rates; and

(c) the ambient chemical characteristics of the groundwater and measures to protect against corrosive attack of any affected infrastructure; and

(d) the proximity of surrounding structures or buildings their footing systems and soil conditions; and

(e) the potential for settlement and water seepage; and

(f) any appropriate measures proposed to avoid, minimise or mitigate the impacts of the development on groundwater systems; and

(g) the concept design of any temporary or permanent measures to be employed to manage groundwater interference, with sufficient detail and explanation to demonstrate that the measures will provide an acceptable level of performance; and

(h) the location and assessment of risk to adjoining properties; and

(i) options for the disposal of groundwater and stormwater; and

(j) how the existing groundwater regime will be maintained.; and

(k) a monitoring program in accordance with any licensing requirements, or in the absence of licensing requirements as determined by Council (Fluctuations in water level should also be monitored pre, during and post construction to inform any necessary remedial action); and

(l) an assessment of possible reasons for performance falling short of the required level and a contingency plan to deal with sub-standard performance and any unforeseen circumstances; and

(m) documentation to satisfy requirements for any permits or licensing to be obtained from the NSW State Government; and

(n) any other features that will have an influence on the site or surrounding area.

I.2.2.10 Flooding

(a) A flood study that estimates the 1% Annual Exceedance Probability (AEP) flood level and flow path through the existing and proposed developed site.

(b) A site plan that plots the area below the flood planning level

I3 Submission requirements for Part D - Heritage Management

I3.1 Submission requirements for Part D Heritage

I3.1.1 Heritage impact statements

Development of heritage properties is to consider potential heritage impacts and mitigate adverse impacts. Owners of heritage items and buildings within conservation areas who wish to develop their properties are required to demonstrate adequate assessment of impact of their proposal on existing heritage values of the property and locality.

Clause 5.10(5) (Heritage assessment) of LEP 2015 identifies that Council may require a Heritage Impact Statement for development or works to heritage properties. This section provides further guidance on those requirements under clause 5.10(5) (Heritage assessment).

A Heritage Impact Statement (or HIS) is to be submitted for development applications affecting:

- Heritage items identified in LEP 2015; or
- Properties within a heritage conservation area identified in LEP 2015; or
- Properties within the vicinity of a heritage item or heritage conservation area.

A Heritage Impact Statement is to be prepared by a suitably qualified person, such as a heritage consultant or architect with heritage experience.

Guidelines for the preparation of Statements of Heritage Impact are available on the website of Heritage NSW at www.environment.nsw.gov.au/publications/guidelines-preparing-statement-heritage-impact

The scope and size of the Heritage Impact Statement will vary according to the scope and size of the changes proposed. The size of the Heritage Impact Statement should be in concise form or full form, depending on the proposal.

Concise Heritage Impact Statement: For small alterations and additions, and works to modest properties, and where a heritage inventory sheet has been adequately prepared for minor works and modest properties, only a concise Heritage Impact Statement is required. For properties in the vicinity of a heritage item or heritage conservation area, it is also likely that only a concise form of Heritage Impact Statement would be required, as only the curtilage or setting and views of the item or area are likely to be affected by development.

Full Heritage Impact Statement: For larger applications where substantial works are proposed, and more complex heritage items, a full Heritage Impact Statement will be required. Primary and secondary research may be required to confirm information in the inventory sheet and guide the appropriateness of various works. More detailed fabric analysis is likely to be required.

Either form of the Heritage Impact Statement is to generally include research, descriptions, illustrations (photographs and drawings) and analysis, and to clearly and succinctly provide the following:

(a) An assessment of the heritage significance of the heritage item and/or the contribution which the building makes to the heritage significance of the heritage conservation area. Refer to Part I.1 *Heritage Contributions Maps* for the contributory value of each property within a heritage conservation area. The contributions are identified as contributory, neutral or uncharacteristic. Further information can be taken from the heritage inventory sheet if available for smaller applications, and no further primary or secondary research may be required;

(b) A thorough description of the current proposal with supporting plans;

(c) Compliance with the relevant controls of Part D – Heritage conservation of the DCP, preferably in a tabulated form for ease of reference.

(d) The options that were considered when arriving at a preferred development and the reasons for choosing the preferred option;

(e) The resultant impact of the proposed development on the heritage significance of the heritage item, heritage items or conservation areas within the vicinity, or the heritage conservation area;

(f) The compatibility of the development with either conservation policies of a Conservation Management Plan or Conservation Management Strategy, or the recommended management from the Heritage Inventory Sheet for the item or conservation area.

For properties with significant gardens, curtilages and or landscape settings, the report is to include:

(a) an assessment of significance of the landscape elements, trees, gardens and landscape design;

(b) a discussion of the impacts of the proposal upon the landscape elements, trees, gardens and landscape design, including visual impacts and views, tree removal and streetscape impacts.

If a proposed development will not comply with one or more of the objectives and controls in D – Heritage conservation, the documentation accompanying the development application is to demonstrate how the proposal will still satisfy the heritage conservation objectives by providing a detailed analysis.

A heritage impact statement may not be required for certain applications such as minor works applications under clause 5.10 (3) of LEP 2015, and where Council exercises its discretion for minor development applications. Contact should be made with Council to clarify requirements early in the development application process.

I3.1.2 Conservation management plans

A conservation management plan (CMP) is a more comprehensive document than a heritage impact statement. It identifies the heritage significance of a place, and provides an assessment of that significance, which then informs the preparation of guiding policy for future works or potential changes of use. A Heritage Impact Statement is sometimes appended to or incorporated into a CMP to assess currently proposed works.

Clause 5.10(6) (Heritage conservation management plans) of LEP 2015 identifies that Council may require a Conservation Management Plan for development or works to heritage properties. This section provides further guidance on those requirements under clause 5.10(6) (Heritage conservation management plans).

A conservation management plan (or CMP) prepared by a suitably qualified heritage consultant to accompany a development applications is required for the following:

- Any alterations to the fabric or setting of a heritage item listed on the State Heritage Register which requires consent;
- An application under the heritage conservation incentives provisions of 5.10(10) (Conservation incentives) of LEP 2015;
- Substantial alterations and/or additions to a heritage item considered by Council to be of high local significance, unless the consent authority determines that it is not required.
- A change of use of a heritage item listed on the State Heritage Register;

A conservation management plan is to be prepared by a suitably qualified person, such as a heritage consultant or architect with heritage experience.

The conservation management plan is to include:

(a) Detailed documentary evidence of the historic development and physical fabric of the heritage item;

(b) A comparative analysis of properties of similar size and use, similar style and period, an architect's body of work, as relevant;

(c) A curtilage assessment;

(d) Assessment of significance according to the accepted heritage criteria and using the endorsed heritage inventory sheet;

(e) Investigation of the constraints and opportunities for the item;

(f) Conservation policies which address the following as a minimum:

  i. Conservation of the fabric and setting of the item;

  ii. Appropriate uses of the item;

  iii. Appropriate options for interpretation of the item and interpretive devices;

iv. Management of the item;

v. Guidelines for future development;

(g) Priorities for instigation of conservation policies.

In certain cases, Council may consider a conservation management strategy (or CMS) as an appropriate alternative to a conservation management plan for heritage items of local significance depending on the scope of the works and the significance of the item.

A CMP or a CMS is to be prepared in accordance with the format prepared by the NSW Office of Environment and Heritage and 'The Conservation Plan' By James Semple Kerr (National Trust, 1982).

A CMP needs to be regularly updated, particularly where major new works are proposed. The timeframe for updating a CMP is generally after five years.

I3.1.3 Aboriginal Cultural Heritage Assessments

Aboriginal Cultural Heritage Assessments are to be prepared by a suitably qualified archaeologist in accordance with the Heritage NSW guidelines prepared by the then Office of Environment and Heritage.

Further information can be sourced from the Heritage NSW website.

The core guideline documents include:

- Due Diligence Code of Practice for the Protection of Aboriginal Objects in NSW;
- Guide to investigating, assessing and reporting on Aboriginal cultural heritage in NSW;
- Code of Practice for Archaeological Investigation of Aboriginal Objects in NSW;
- Aboriginal Cultural Heritage Consultation requirements for proponents;

I3.1.4 Historical Archaeological Assessments

A Historical Archaeological Assessment may be required for sites where there is known or potential presence of Archaeological heritage. The NSW Heritage Act 1977 was amended in 2009 such that the definition of archaeological 'relic' includes an archaeological deposit, resources or feature that has heritage significance at a local or State level. The definition is no longer based on age.

The NSW Heritage Council has adopted specific criteria for heritage assessment, related to the NSW Heritage Act 1977.

These criteria and further guidelines on the requirements for Archaeological Assessments can be sourced from Heritage NSW website at:

www.environment.nsw.gov.au/publications/assessing-significance-historical-archaeological-sites-and-relics

I3.1.5 Archival recording

The requirement for an archival record is generally a condition attached to a development consent. It is usually required for demolition of or significant change to a heritage item or a building within a heritage conservation area. An archival record provides accurate documentation of the current condition of a property prior to that substantial change or loss. The archival record is held at the Local Studies Library and may be used by the public for research purposes.

An archival record may be required as a condition of consent to a development, where demolition or substantial changes are proposed to an item or conservation area.

The archival record is to be completed by a suitably qualified consultant who can demonstrate a working knowledge of archival principles.

As a minimum, the archival record is to include the following:

(a) Title, author, date and property details;

(b) Site description, history and significance (can be extracted from Heritage Impact Statement);

(c) Copies of approved plans appended at A4 for reference; and

(d) Extensive photographic record using digital capture.

(e) Photographic material is to be individually captioned and cross-referenced to site plans and/or plans of each building level.

Two sets of the documents are to be submitted. Each set is to be contained within an archival-quality binder (Albox or similar) and include printed photographic records and all other documentation as above, and an electronic version on CD.

Note: One copy will be retained on file at Council and a second copy will be sent to the Local Studies Library.

Photographic archival records must be taken of the building, landscape or item and may use the following references as guidelines:

- Archives Advice 7: Protecting and Handling Photographs (2007), National Archives of Australia;
- Archives Advice 30: Which Paper? (2007), National Archives of Australia;
- Assessing Heritage Significance (2023), Environment and Heritage, Department of Planning and Environment';
- How to Prepare Archival Records of Heritage Items (1998), Heritage Branch;
- Photographic Recording of Heritage Items Using Film or Digital Capture (2006), Heritage Branch.

I3.1.6 Additional requirements and variations

Where development is in relation to a highly significant or sensitive property, or development is contentious in nature, applicants are advised to consult Council's Heritage Advisor as early as possible in the process to determine Council's potential support, and what additional information will be required. This would generally be in the form of a pre-lodgement application, where specialist heritage advice can be made available.

(a) Council may require photomontages or perspectives that demonstrate the impact of the proposed development on existing views of the property from the public domain or other place identified by Council depending on the nature of the proposed development. A model may be required for major development, particularly if infill development is proposed.

(b) If a larger scaled development is proposed (for example, where several lots are to be amalgamated and the site redeveloped), additional site-specific controls may be required to address the specific issues relevant to the site and its setting.

(c) Where an applicant proposes a good quality design solution that will protect the heritage significance of the property or heritage conservation area, Council may support variation from the standards identified in this part.

I4 Submission requirements for Part E - Site Management

I4.1 Submission requirements for E2 – Traffic, Parking and Access

I4.1.1 Traffic and Parking Report

This report is to include:

(a) A parking generation calculation as required in C1; and

(b) if all parking cannot be accommodated onsite, a survey of available on-street parking within walking distance from the site at peak generation times relevant to the proposed development; and

(c) estimates of the peak hour traffic generation for the development; and

(d) on classified or collector roads, or areas of high pedestrian and vehicle traffic, the report is to include a queue length analysis for vehicles entering and leaving the site.

I4.1.2 Traffic Impact Study

A Traffic Impact Study is to be prepared by a suitably qualified traffic engineer and is to include:

(a) The requirements within the Parking and Traffic Report; and

(b) the requirements of Section 2.2 of the Roads and Maritime Services (RMS) Guide to Traffic Generating Developments.

I4.1.3 A Preliminary Construction Traffic Management Plan

This plan is to include details of how the proposed development will be able to undertake loading and unloading, demolition and construction including the manoeuvring of trucks in and out of a site, parking of construction and staff vehicles with minimum disruption to vehicular and pedestrian traffic or transportation networks.

I4.1.4 Services Plan (for all development)

A plan showing the location of existing and proposed services, connection points, easements, clearances and access ways.

I4.1.5 Water Cycle Management Study

This study is to be provided for all development which includes Onsite wastewater disposal

I4.1.6 Site and Soil Assessment Report

This study is to be provided for development including which includes a pumpout system.